

**SFIO Vs Adarsh Buildtech. And others COMA
No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel, alongwith Sh. Satish Aggarwal, SFIO assisted by Sh. SS Gulia, Public Prosecutor for the state.

**Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi**

Present : Accused Rohit Modi, authorized representative of the above companies not produced by the jail authorities.

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody in this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case. But today, he has not been produced by the jail authorities, despite production warrant, due to non-availability of sufficient police personnel. As such, let production warrant of accused Rohit Modi be issued for 02.11.19, with directions to Superintendent of Police, Jaipur and Incharge Central Jail, Jaipur to produce him before this court on the date fixed.

**Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)**

The anticipatory bail application filed by accused A-135, Sidharth Chauhan in his personal capacity as well as being Director and authorized representative of accused companies A-71 to A-78, has been dismissed vide detailed order dated 1.8.2019 by my Learned Predecessor. But despite this, he has not appeared or surrendered. No other authorized person on behalf of above accused-companies has appeared despite notice

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to the above accused. As such, these companies shall be represented by above accused.

However, in order to procure the service of accused, named-above, in his personal capacity, warrant of arrest issued against him has not been received back. As such, his fresh warrant of arrest be issued for 2.11.2019 to be executed by DCP Hq., Guurgram through a senior police officer, who will appear on the date fixed to explain, if it remained unexecuted.

Accused Companies promoted by accused, Vivek Harivyasi:

A-79 : A3G Infra Private Limited
A-90 : Cynosure Real Estate Pvt. Ltd.
A-91 : EOS Developers Pvt. Ltd.
A-92 : Adler Infra Ventures Pvt. Ltd.
A-93 : Headstrong International Exports Pvt. Ltd.
A-115: Vivek Harivyasi in custody.

Present: Accused Vivek Harivyasi, in custody No. A-115, with counsel.

Accused Vivek Harivyasi has not been produced in custody by District Jail, Bhondsi. Let production warrant of accused Vivek Harivyasi in the name of Jail Superintendent, Bhondsi, in his personal capacity as well for the above referred companies being its authorized representative, as per the observations made in the earlier order dated 30.7.2019, be issued for 2.11.19.

Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, AR)

Bailable warrant of the above accused-company through its AR received back unexecuted. Fresh bailable warrants be issued for 2.11.19.

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A-81 : HNS Infratech Pvt. Ltd.
A-82 : HNS Projects Pvt. Ltd.

Present : Accused A-140, Surender Singh in custody
Sh. Anuj Lohia, Advocate for accused.

Accused A-140 has not been produced today. Let production warrant of accused Surender Singh in the name of Jail Superintendent, Bhondsi, in his personal capacity as well for the above referred companies being its authorized representative, be issued for 2.11.19.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Present : None

Bailable warrant of above said accused company received back unexecuted with the report that address is incomplete. Fresh bailable warrant be issued for the date fixed, 2.11.19 on filling of complete address.

Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

An application for regular bail filed by accused A-140, Surender Singh after surrendering before the court is already dismissed. Now he is in custody and his presence is also marked being Director and AR of above said two companies and interim protection granted to him has been recalled vide order dated 23.9.2019 passed by my Learned Predecessor.

Warrant of arrest issued for today received back unexecuted. At this stage, an application under section 317 Cr.P.C., on behalf of accused no. 127 seeking exemption from personal appearance moved on

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the ground that applicant/accused has approached Hon'ble High Court, Chandigarh to seek remedy available to him and his matter may get listed in next week. Request was strongly opposed by complainant side. Heard. Record perused. The allegations are serious in nature. No justifiable ground is made out for exemption from personal appearance. Request is declined. Execution of warrant of arrest of accused no. 127, issued in pursuance of order dated 3.10.2019, is hereby extended upto 2.11.2019.

Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.

Present : Accused No.A-130, Jainam Rathod in custody with
Shri Salim Malik Advocate along with Gulshan Sharma
Local Advocate.

Accused No. A-130, Jainam Rathod has already surrendered and been arrested. His regular bail application has also been dismissed. As such, his presence is marked on behalf of above accused company, A-85, as well as in his individual capacity.

He has however, not been produced today. Let production warrant of accused Jainam Rathod in the name of Jail Superintendent, Bhondsi, in his personal capacity as well for the above referred companies being its authorized representative, be issued for 2.11.19.

Accused companies :

A-86 : Laxmikripa Buildcon Pvt. Ltd.

A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.

A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

Present: Shri Jai Singh Chauhan AR of above companies
alongwith Shri Harash Kaushik Advocate and Sh.
Kuldeep Singh Local Advocate assisted by Sh. Abhishek
Sharma, Advocate.

All the above accused companies are duly represented by Shri Jai Singh Chauhan, Authorized representative, who has already appeared

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as per section 305. As such he is directed to appear on date fixed 02.11.2019 for further proceedings.

Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Sudhir Mehta, Accused No. A-170 and Raj Kumar Bohra, accused A-171, its partners)

Present: Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local Advocate for the all the above accused.

An application for anticipatory bail on behalf of accused-firm, A-89, has been filed by the applicant-accused, No. A-170 and A-171 today, which has been adjourned for 2.11.2019 for reply and arguments. The relief granted to said accused by my learned Predecessor vide order dated 4.9.2019 shall continue till decision of Anticipatory Bail application.

Accused Companies No.:

A-94: Aarti Marketing Pvt. Ltd.

A-95: Caranation Trading Pvt. Ltd.

A-96: Cyan Financial Solutions Pvt. Ltd.

A-97: Lever Finvest Pvt. Ltd.

Present:

Rahul S/o Mangal Sain on bail (Being Director and AR of above companies)

S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 02.11.19 for further proceedings.

Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)

Present:

Naresh Kumar S/o Har Prasad on bail (Being Director and AR above company)

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S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 02.11.19 for further proceedings.

**Accused-companies : A-99 : Dinkar Commercials Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd. Along with and Accused
No. A-176 Raj Kumar Modi, its director**

Present: Accused already absent.

Warrant of arrest was issued for today but it was not received back either executed or unexecuted. Fresh **warrant of arrest** be issued against the accused for 02.11.19. Notice under Section 446 Cr.P.C. was also sent to the surety as well as identifier. Sh. Rajesh Ranjan, Advocate, being identifier of Surety and alleged that he has nothing to do with this aspect as he has simply signed the bail bonds. However, since he had identified the surety, he assured that he will get the notice under Section 446 Cr.P.C. served on the surety by assisting the executing official. Accordingly fresh notice under Section 446 Cr.P.C. be issued against the surety Smt. Rekha Modi and learned counsel will assist the executing official to trace and serve the notice upon the surety.

Accused-companies:

A-101: Alba Polymers Ltd.

A-102: Channel Nine Entertainment Ltd.

A-103: Funny Software Ltd.

A-104: Gold Line International Finvest Ltd.

A-105 : Inceptum Enterprises Limited

A-106 : Kanak Krishi Implements Ltd.

A-108: Porsche Capital Market Ltd.

A-109 : Sagitarius Advertising Ltd.

A-110: Satkar Finlease Ltd.

A-111 : Surya Marketing Ltd.

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A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Present:

Sh. Abishek, AR of A-101, along with S/Shri Kaushal Kumar and Ranjan Kumar, Advocates.

Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.

Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.

Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.

Sh. Annop, AR of A-105 along with Sandeep Joon, Advocate.

Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj, Advocate.

Sh. Ranjan Kumar, Advocate for Jishan, AR of A-108

Sh. Vikas Paul, AR of A-109 along with Sachin Bali, Advocate.

Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar, Advocate.

Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh, Advocate.

Sh Devender Kumar on bail (Being Director and AR of A-112 company) along with S/Sh. Rohit Arora and Anubhav Almadi, Advocates.

The ARs of all the above accused companies as named above except Nitish Bhardwaj, AR of accused, A-106, are present. Their presence is accordingly marked on behalf of the accused companies referred above. An application for exemption of Nitish Bhardwaj, AR of accused, A-106 has been filed on the ground that he is suffering from diarrhoea which is allowed as per the grounds mentioned therein. And he is directed to appear on date fixed, 2.11.2019. Where as all other ARs who have appeared, have also filed their respective affidavits, Power of Attorney alongwith resolution of the company authorizing each of them to appear on behalf of the above accused-companies in this complaint as per section 305 of Cr.P.C. As such, the presence of all the above accused-companies stand complete. And they all are directed to appear on date fixed, 2.11.2019 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

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Bailable warrant of above mentioned accused company, A-107 received back unexecuted. Fresh bailable warrant be issued for 2.11.2019.

**Accused who are in custody but not produced by Jail Incharge,
Jaipur**

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

All the above named accused have already been arrested in this case and sent to judicial custody. However, after the arrest of all the above accused, they were taken by Jaipur Police in another case and were lodged in Central Jail, Jaipur. They were not produced by Superintendent Central Jail, Jaipur, despite production warrants however, their jail warrants were received in the court. These accused be now produced on 2.11.2019.

A-117 : Priyanka Modi in custody with Sh. Prashant Yadav, Advocate.

Accused Priyanka Modi not produced by Jail Authorities, Jaipur but jail warrant has been received in the court. The accused be now produced on 2.11.2019.

A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari

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(Exempted from personal appearance till further orders)

**Present : All the above accused on bail represented through
Shri Mohan Chaudhary, Advocate**

All these accused persons have already surrendered and vide order dated 13.8.2019 their bail application was allowed and later on 20.8.2019 they furnished bail bonds and moved an application under Section 317 Cr.P.C. for seeking permanent exemption of personal appearance which was allowed by my Learned Predecessor, vide order dated 4.9.2019 by observing that personal appearance of the above three accused persons will remain exempted subject to further orders of this court and subject to the condition that their Advocate will appear on each and every date of hearing to record the proceedings and then they will appear as and when required.

Today Sh. Mohan Chaudhary, Adv. put in appearance on behalf of said accused persons.

**Accused who are absent but moved bail applications
under section 438 Cr.P.C.**

**A-118 : Jinendra Vyas (Anticipatory bail application dismissed on
24.9.2019 by my learned Predecessor)**

**A-127 : Abhay K. Shah (Anticipatory bail application dismissed
on 23.9.2019 by my learned Predecessor)**

**A-137 : Shinder Pal Singh (Anticipatory bail application
dismissed on 13.9.2019 by my learned Predecessor)**

**A-138 : Girbir Singh Sandhu (Anticipatory bail application
dismissed on 13.9.2019 by my learned Predecessor)**

A-155 : Mahender Singh Tak

A-163 : Megha Chauhan

A-164 : Indu Tak

A-165 : Shyam Bihari Gupta

A-166 : Ravi Tak

A-170 : Sudhir Mehta

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A-171 : Raj Kumar Bohra
A-172 : Saurabh Tak
A-178 : Mahesh Dutt Sharma
A-187 : Mahesh Kumar Tak
(Anticipatory bail of remaining accused mentioned above are still pending)

Warrant of arrest issued against accused i.e. accused no. A-118, 127, 137, 138 received back unexecuted. Execution of warrant of arrest issued against these persons, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 2.11.2019.

In so far as, accused Nos. 155, 163, 164, 165, 166, 170, 171, 172, 178 and 187 are concerned, the benefit granted to them by my learned Predecessor vide order dated 4.9.2019 shall remain admissible to them.

Accused, who are not served with Bailable warrants.

A-144 : Joydeep Dass Gupta
A-145 : Lovekush Sharma
A-148 : Avanish Kumar Tyagi
A-151 : Poonam Madan
(above named accused on bail and represented by Sh. Vishal Gupta, Adv.)

A-152 : Nazima Khan
A-153 : Shabbir Khan

A-156 : Praveen Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)
A-157 : Rajeev Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

Sh. Sanjeev Jain, Advocate for accused no. A-156 and A-157

An application for exemption from personal appearance of accused nos. 156 and 157 has been filed on the ground that both the accused were suffering from Lung infection(Broncitus), therefore, they were not in position to appear before the court, on medical advise. Heard,

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taking a lenient view as per medical certificate enclosed with application, presence of accused no. 156 and 157 are exempted for today only.

Bailable warrants of accused No. 152 and 153 remained un-executed. As such, let fresh bailable warrants of other accused who are unserved for today be issued for 2.11.2019.

Accused who are absent.

A-116 : Nitin Rathore
A-119 : Vinay Kumpawat
A-121 : Paras Bolia
A-124 : Neha Gemawat
A-128 : Manish Chauhary
A-129 : Deepak Shrimali
A-132 : Meenakshi Modi
A-133 : Prakash Chandra Purohit
A-136 : Akshat Singh
A-139 : Naveen Kumar
**A-141 : Aditya Sarada(Sh. Vishal Gosain, Adv.,
appeared on his behalf)**
A-143 : Sudhir Punia
A-146 : Leena Harivvysi
A-147 : Vimal Sanwormal Sharma
**A-154 : Bharat Kumar Mardia (Ms. Suchitra
Kumbhat, Adv. appeared on his behalf who is
on anticipatory bail as per orders of Hon'ble
Punjab and Haryana High Court)**
A-160 : Shiv Raj Sharma.
A-162 : Naveen Choudhary
A-173 : Peeyush Aggarwal
A-174 : Paramvir Singh Sangwan
A-175 : Vijay Jhindal
A-177 : Rajiv Kumar Rana

An application for exemption from personal appearance of accused no. 141 has been filed on the ground that the accused was suffering from high viral fever and chest pain, therefore, he was not in position to appear before the court, on medical advise. Heard, taking a lenient view as per medical certificate enclosed with application, presence of accused no. 141 is exempted for today only. Today the case was also

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fixed for filing reply to application dated 3.10.2019 of accused no. 141 by the prosecution. Reply not filed. On the request of prosecution/complainant, the case is adjourned to 2.11.2019 for filing reply to application dated 3.10.2019 of accused no. 141 for cancellation of warrant of arrest.

An application for exemption from personal appearance of accused no. 154 has been filed on the ground that benefit of the pre-arrest bail has been extended by Hon'ble High Court, Chandigarh on 15.10.2019. learned counsel filed affidavit in this respect and requested for grant of time for placing certified copy of said order. Heard, taking a lenient view as per affidavit enclosed with application, presence of accused no. 154 is exempted for today only. Learned counsel is impressed upon to file certified copy of order dated 15.10.2019 passed by Hon'ble High Court, Chandigarh on 2.11.2019, the date already fixed.

An application for recall of warrant of arrest against accused no. 175 on 4.9.2019 and 3.10.2019 has been filed by Sh. Nitin Saini, Adv., Copy supplied to the complainant side. On the request of prosecution/complainant, the case is adjourned to 2.11.2019 for filing reply to application dated 3.10.2019 of accused no. 175 for cancellation of warrant of arrest.

An application for continuing the interim relief granted by my Learned Predecessor on 27.9.2019 has been filed. Record perused. As per copy of order dated 4.10.2019, enclosed with application under consideration, which has been passed by my Learned Predecessor, interim relief has already been extended in bail application bearing CNR No. HRGR01-014787-2019 titled Paramvir Vs. SFIO. Therefore, there is no need to pass any further order on the application. Application stand disposed off.

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Warrant of arrest issued against accused named above received back unexecuted. Execution of warrant of arrest issued against above named accused(Except no. 174), in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 2.11.2019 in respect of.

At this stage, Sh. Akash Singh Jangra, Adv., on behalf of accused no. 177, moved an application with request to supply copies of complaint with complete documents in order to enable applicant/accused to move appropriate application before this court. Copy of application supplied to complainant side. The complainant counsel, though stated that complete set of documents alongwith copy of complaint has already been sent alongwith summons/bailable warrant/warrant of arrest, however, in the interest of justice, complainant counsel is directed to supply the requisite copy of complaint alongwith summoning order and since the documents are stated to be voluminous in number, hence, learned counsel for accused no. 177 is advised to inspect the case file as per rules. The application stand disposed off accordingly.

Accused, A-149 : Vijay Shukla

Present : Sh. Gautam Avasthi, Advocate, for the accused, A-149.

Accused, A-149, Vijay Shukla, had approached Hon'ble Supreme Court for relief in Writ Petition (Criminal) No.239/2019 entitled "Vijay Shukla Vs. Union of India and others" dated 3.9.2019 but the same has been disposed off on 19.9.2019.

Now fresh bailable warrant, issued in pursuance of order dated 30.7.2019 by my Learned Predecessor, be issued for 2.11.2019.

Accused who are in custody :

A-130 : Jainam Rathod

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A-150 : Ajit Singh Rathore
A-158 : Ramlal Arya
A-159 : Hemant Kumar Jain
A-161 : Praveen Kumar
A-179 : Damyanti Bhandari
A-182 : Nimesh Kumar Ramesh Chandri Soni
A-183 : Rituraj Singh
A-184 : Dushyant Singh Rathore
A-185 : Shashank Shekhar Singh Rathore
A-186 : Jitesh Kumar Parmar.

Regular bail applications of all the above referred accused have already been dismissed. Accused named above had not been produced by District Jail, Bhondsi, Gurugram today. Let production of above named accused persons be issued in the name of Superintendent, District Jail Bhondsi for 2.11.2019.

Accused No.A-180 : Ichchhita Dungarwal

Present : Accused no. A-180 on bail with S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels.

Accused no. A-180 appeared in person. She is directed to appear in the court on 2.11.2019 the date already for further proceedings.

A-181 : Neha Kataria

Present : Accused Neha Kataria on bail with Sh. Hitesh Kumar, Adv.

Accused no. A-181 appeared in person. She is directed to appear in the court on 2.11.2019 the date already for further proceedings.

The attendance sheet of accused is enclosed herewith.

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